

# STATE OF NEW YORK

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1615--A

Cal. No. 401

2025-2026 Regular Sessions

## IN SENATE

January 13, 2025

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Introduced by Sens. BRISPORT, BROUK, JACKSON, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Housing, Construction and Community Development -- recommitted to the Committee on Housing, Construction and Community Development in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the real property actions and proceedings law, in relation to prohibiting naming dependent children under the age of 18 in petitions to recover possession of real property and eviction warrants and sealing any records pertaining to such children

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 741 of the real property actions and proceedings  
2 law, as added by chapter 312 of the laws of 1962, the opening paragraph  
3 as amended by chapter 583 of the laws of 1979, subdivision 5 as amended  
4 by chapter 302 of the laws of 1976, subdivisions 5-a and 5-b as added by  
5 section 5 of part HH of chapter 56 of the laws of 2024, subdivision 6 as  
6 added by chapter 615 of the laws of 2022, subdivision 7 as added by  
7 chapter 579 of the laws of 2023, subdivision 8 as amended by chapter 64  
8 of the laws of 2024, and subdivision 9 as added by chapter 416 of the  
9 laws of 2025, is amended to read as follows:  
10 § 741. Contents of petition. 1. The petition shall be verified by the  
11 person authorized by section seven hundred twenty-one of this article to  
12 maintain the proceeding; or by a legal representative, attorney or agent  
13 of such person pursuant to subdivision (d) of section thirty hundred  
14 twenty of the civil practice law and rules. An attorney of such person  
15 may verify the petition on information and belief notwithstanding the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

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fact that such person is in the county where the attorney has ~~his~~ an office. Every petition shall:

~~[1-]~~ (a) State the interest of the petitioner in the premises from which removal is sought.

~~[2-]~~ (b) State the respondent's interest in the premises and ~~his~~ the respondent's relationship to petitioner with regard thereto.

~~[3-]~~ (c) Describe the premises from which removal is sought.

~~[4-]~~ (d) State the facts upon which the special proceeding is based.

~~[5-]~~ (e) State the relief sought. The relief may include a judgment for rent due, and for a period of occupancy during which no rent is due, for the fair value of use and occupancy of the premises if the notice of petition contains a notice that a demand for such a judgment has been made.

~~[5-a-]~~ (f) Append or incorporate the notice required pursuant to section two hundred thirty-one-c of the real property law, which shall state the following: (i) if the premises are or are not subject to article six-A of the real property law, the "good cause eviction law", and if the premises are exempt, such petition shall state why the premises are exempt from such law; (ii) if the landlord is not renewing the lease for a unit subject to article six-A of the real property law, the lawful basis for such non-renewal; and (iii) if the landlord is increasing the rent upon an existing lease of a unit subject to article six-A of the real property law above the applicable local rent standard, as defined in subdivision eight of section two hundred eleven of the real property law, the justification for such increase.

~~[5-b-]~~ (g) If the petitioner claims exemption from the provisions of article six-A of the real property law pursuant to subdivision one of section two hundred fourteen of the real property law, append or incorporate the information required pursuant to subdivision one of section two hundred fourteen of the real property law.

~~[6-]~~ (h) In the city of Albany, where the premises from which removal is sought is subject to a local law requiring the registration of said premises as a condition of legal rental, allege proof of compliance with such local law.

~~[7-]~~ (i) In the city of Newburgh, where the premises from which removal is sought is subject to a local law requiring the registration of said premises as a condition of legal rental, allege proof of compliance with such local law.

~~[8-]~~ (j) In the city of Syracuse, where the premises from which removal is sought is subject to a local law requiring the registration of said premises as a condition of legal rental, allege proof of compliance with such local law.

~~[9-]~~ (k) In the city of Schenectady, where the premises from which removal is sought is subject to a local law requiring the registration of said premises as a condition of legal rental, allege proof of compliance with such local law.

2. No dependent children under the age of eighteen living in the same household with a parent or guardian shall be named in the petition.

§ 2. Subdivision 1 of section 749 of the real property actions and proceedings law, as amended by section 19 of part M of chapter 36 of the laws of 2019, is amended to read as follows:

1. Upon rendering a final judgment for petitioner, the court shall issue a warrant directed to the sheriff of the county or to any constable or marshal of the city in which the property, or a portion thereof, is situated, or, if it is not situated in a city, to any constable of any town in the county, describing the property, stating the earliest

1 date upon which execution may occur pursuant to the order of the court,  
2 and commanding the officer to remove all persons named in the proceed-  
3 ing, provided upon a showing of good cause, the court may issue a stay  
4 of re-letting or renovation of the premises for a reasonable period of  
5 time; provided further, however, that no dependent children under the  
6 age of eighteen living in the same household with a parent or guardian  
7 shall be named in the warrant.

8 § 3. Section 749 of the real property actions and proceedings law is  
9 amended by adding a new subdivision 4 to read as follows:

10 4. In the event that a warrant is issued pursuant to subdivision one  
11 of this section and any persons are removed from a property, any records  
12 pertaining to dependent children under the age of eighteen living in the  
13 same household with a parent or guardian who were residing on or removed  
14 from such property shall be sealed and deemed confidential. No disclo-  
15 sure or use of such information relating to dependent children under the  
16 age of eighteen who were residing on or removed from such property shall  
17 be authorized, and the use of such information shall be prohibited.

18 § 4. This act shall take effect immediately; provided, however, that  
19 the amendments to paragraphs (f) and (g) of subdivision 1 of section 741  
20 of the real property actions and proceedings law made by section one of  
21 this act shall not affect the repeal of such paragraphs and shall be  
22 deemed repealed therewith.